

CV-24-002775 MEDINA, LIBERTAD vs GENERAL MOTORS LLC - Plaintiff's Motion for Attorney's Fees and Costs Pursuant to Civil Code Section 1794(d) – GRANTED, in part, denied in part, as follows:

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Defendant is admonished for the final time regarding violations of Rules 3.113 and 2.108 of California Rules of Court. Further violations will result in the imposition of sanctions. Plaintiff is the prevailing party pursuant to Defendant's CCP § 998 offer, which provided that Plaintiff's attorney fees, costs, and expenses reasonably incurred pursuant to Civil Code § 1794(d) would be determined by noticed motion. Entitlement is therefore not disputed. The issue is the reasonable amount to be awarded. Plaintiff seeks attorney fees of \$43,651.50, a 0.10 multiplier of \$4,365.15, and costs of \$2,481.12, for a total request of \$50,497.77. Under Civil Code § 1794(d), the prevailing buyer may recover attorney fees, costs, and expenses reasonably incurred in connection with the commencement and prosecution of the action. The Court must determine whether the hours claimed were actually and reasonably incurred and whether the amount charged is reasonable under all of the circumstances (Civ. Code § 1794(d); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104; Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, review denied; Serrano v. Unruh (1982) 32 Cal.3d 621; Doppes v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967; Levy v. Toyota Motor Sales, U.S.A., Inc., (1992) 4 Cal.App.4th 807; Niedermeier v. FCA US LLC (2024) 15 Cal.5th 792, 821). Defendant seeks substantial reductions based on template use, duplication, pre-litigation work, fraud-related work, administrative tasks, fee motion work, and costs. The Court does not adopt Defendant's requested reduction in full. However, certain targeted reductions are warranted. First, Defendant requests elimination of all time allegedly related to Plaintiff's fraud claim. The Court declines to make such a reduction. Plaintiff's Song-Beverly, fraud, and CLRA claims arise from the same alleged vehicle defects, warranty repair history, Defendant's knowledge, and Defendant's alleged failure to repurchase or replace the vehicle. The claims are sufficiently intertwined such that apportionment is not warranted. Second, Defendant's objections concerning template use have partial merit. The Court recognizes that experienced Song-Beverly counsel may permissibly use templates to litigate recurring issues efficiently. However, template use also supports a finding that certain claimed hours were excessive where the work required limited customization. The following reductions are made: Review of GM's discovery requests: \$220.00 Plaintiff's responses to GM's discovery requests: \$385.00 Plaintiff's discovery requests: \$385.00 Meet-and-confer correspondence: \$1,298.00 Customer service representative deposition notice: \$287.50 Review of GM's discovery responses: \$440.00 Motion to compel PMK deposition: \$935.00 Review of motions in limine: \$275.00 Fee motion work: \$3,860.00 Administrative/file-management tasks: \$1,222.00 Duplicate review of document production: \$550.00 The total fee reduction is \$9,857.50. Accordingly, the requested lodestar of \$43,651.50 is reduced by \$9,857.50, for an adjusted attorney fee award of \$33,794.00. The request for a multiplier is denied. Although Plaintiff obtained a favorable result and counsel accepted the matter on a contingent basis, this case did not involve unusually novel or complex issues, did not proceed to trial, and the lodestar adequately compensates counsel for the work reasonably performed. As to costs, Plaintiff seeks \$2,481.12. Defendant's objections are granted in part. The Court disallows the \$550.00 anticipated court reporter fee for the fee motion hearing. The remaining costs are allowed. Allowed costs are therefore \$1,931.12 Plaintiff's Motion for Attorney Fees and Costs is therefore GRANTED IN PART as follows: Attorney Fees: \$33,794.00 Costs: \$1,931.12 Total Award: \$35,725.12 The request for a multiplier is denied. Plaintiff shall submit a proposed order within five (5) court days of this ruling.

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CV-24-002775 - MEDINA, LIBERTAD vs GENERAL MOTORS LLC - Plaintiff's Motion for Attorney's Fees and Costs Pursuant to Civil Code Section 1794(d) – GRANTED, in part, denied in part, as follows:

Defendant is admonished for the final time regarding violations of Rules 3.113 and 2.108 of California Rules of Court. Further violations will result in the imposition of sanctions.

Plaintiff is the prevailing party pursuant to Defendant's CCP § 998 offer, which provided that Plaintiff's attorney fees, costs, and expenses reasonably incurred pursuant to Civil Code § 1794(d) would be determined by noticed motion. Entitlement is therefore not disputed. The issue is the reasonable amount to be awarded.

Plaintiff seeks attorney fees of \$43,651.50, a 0.10 multiplier of \$4,365.15, and costs of \$2,481.12, for a total request of \$50,497.77.

Under Civil Code § 1794(d), the prevailing buyer may recover attorney fees, costs, and expenses reasonably incurred in connection with the commencement and prosecution of the action. The Court must determine whether the hours claimed were actually and reasonably incurred and whether the amount charged is reasonable under all of the circumstances (Civ. Code § 1794(d); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785 ; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104; Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, review denied; Serrano v. Unruh (1982) 32 Cal.3d 621; Doppes v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967; Levy v. Toyota Motor Sales, U.S.A., Inc., (1992) 4 Cal.App.4th 807; Niedermeier v. FCA US LLC (2024) 15 Cal.5th 792, 821).

Defendant seeks substantial reductions based on template use, duplication, pre-litigation work, fraud-related work, administrative tasks, fee motion work, and costs. The Court does not adopt Defendant's requested reduction in full. However, certain targeted reductions are warranted.

First, Defendant requests elimination of all time allegedly related to Plaintiff's fraud claim. The Court declines to make such a reduction. Plaintiff's Song-Beverly, fraud, and CLRA claims arise from the same alleged vehicle defects, warranty repair history, Defendant's knowledge, and Defendant's alleged failure to repurchase or replace the vehicle. The claims are sufficiently intertwined such that apportionment is not warranted.

Second, Defendant's objections concerning template use have partial merit. The Court recognizes that experienced Song-Beverly counsel may permissibly use templates to litigate recurring issues efficiently. However, template use also supports a finding that certain claimed hours were excessive where the work required limited customization.

The following reductions are made:

Review of GM's discovery requests: \$220.00

Plaintiff's responses to GM's discovery requests: \$385.00

Plaintiff's discovery requests: \$385.00

Meet-and-confer correspondence: \$1,298.00

Customer service representative deposition notice: \$287.50

Review of GM's discovery responses: \$440.00

Motion to compel PMK deposition: \$935.00

Review of motions in limine: \$275.00

Fee motion work: \$3,860.00

Administrative/file-management tasks: \$1,222.00

Duplicate review of document production: \$550.00

The total fee reduction is \$9,857.50.

Accordingly, the requested lodestar of \$43,651.50 is reduced by \$9,857.50, for an adjusted attorney fee award of \$33,794.00.

The request for a multiplier is denied. Although Plaintiff obtained a favorable result and counsel accepted the matter on a contingent basis, this case did not involve unusually novel or complex issues, did not proceed to trial, and the lodestar adequately compensates counsel for the work reasonably performed.

As to costs, Plaintiff seeks \$2,481.12. Defendant's objections are granted in part. The Court disallows the \$550.00 anticipated court reporter fee for the fee motion hearing. The remaining costs are allowed.

Allowed costs are therefore \$1,931.12

Plaintiff's Motion for Attorney Fees and Costs is therefore GRANTED IN PART as follows:

Attorney Fees: \$33,794.00

Costs: \$1,931.12

Total Award: \$35,725.12

The request for a multiplier is denied.

Plaintiff shall submit a proposed order within five (5) court days of this ruling.